

TITLE II.

OF THE LAW OF NATURE, THE LAW OF NATIONS,
AND THE CIVIL LAW.

The law of nature is that which she has taught all animals ; a law not peculiar to the human race, but shared by all living creatures, whether denizens of the air, the dry land, or the sea. Hence comes the union of male and female, which we call marriage ; hence the procreation and rearing of children, for this is a law in the knowledge of which we see even the
1 lower animals taking pleasure. The civil law of Rome, and the law of all nations, are thus distinguished. The laws of every people governed by statutes and customs are partly peculiar to itself, partly common to all mankind. Those rules which a state enacts for its own members are peculiar to itself, and are called civil law : those rules prescribed by natural reason for all men are observed by all peoples alike, and are called the law of nations. Thus the laws of the Roman people are partly peculiar to itself, partly common to all nations ; a distinction of which we shall take notice as occasion offers.

2 Civil law takes its name from the state wherein it binds ; for instance, the civil law of Athens, it being quite correct to speak thus of the enactments of Solon or Draco. So too we call the law observed by the Roman people the civil law of the Romans, or the law of the Quirites ; the law, that is to say, which they observe, the Romans being called Quirites after Quirinus. Whenever we speak, however, of civil law, without any qualification, we mean our own ; exactly as, when ' the poet ' is spoken of, without addition or qualification, the Greeks understand the great Homer, and we understand Vergil. But the law of nations is common to the whole human race ; for nations have settled certain things for themselves as occasion and the necessities of human life required. For instance, wars arose, and then followed captivity and slavery, which are contrary to the law of nature ; for by the law of nature all men from the beginning were born free. The law of nations again is the source of almost all contracts ; for instance, sale, hire, partnership, deposit, loan for consumption, and very many others.

Our law is partly written, partly unwritten, as among the 3
Greeks. The written law consists of statutes, plebiscites,
senatusconsults, enactments of the Emperors, edicts of the
magistrates, and answers of those learned in the law. A 4
statute is an enactment of the Roman people, which it used
to make on the motion of a senatorial magistrate, as for
instance a consul. A plebiscite is an enactment of the com-
monalty, such as was made on the motion of one of their
own magistrates, as a tribune. The commonalty differs
from the people as a species from its genus ; for ' the people '
includes the whole aggregate of citizens, among them
patricians and senators, while the term ' commonalty ' em-
braces only such citizens as are not patricians or senators.
After the passing however of the statute called the lex
Hortensia, plebiscites acquired for the first time the force of
statutes. A senatusconsult is a command and ordinance of 5
the senate, for when the Roman people had been so increased
that it was difficult to assemble it together for the purpose
of creating statutes, it seemed right that the senate should be
consulted instead of the people. Again, what the Emperor 6
determines has the force of a statute, the people having con-
ferred on him all their authority and power by the *lex regia*,
which was passed concerning his office and authority. Con-
sequently, whatever the Emperor settles by rescript, or de-
cides in his judicial capacity, or ordains by edicts, is clearly a
statute : and these are what are called constitutions. Some
of these of course are personal, and not to be followed as
precedents, since this is not the Emperor's will ; for a favour
bestowed on individual merit, or a penalty inflicted for in-
dividual wrongdoing, or relief given without a precedent, do
not go beyond the particular person : though others are
general, and bind all beyond a doubt. The edicts of the prae- 7
tors too have no small legal authority, and these we are used
to call the *jus honorarium*, because those who occupy posts of
honour in the state, in other words the magistrates, have given
authority to this branch of law. The curule aediles also used
to issue an edict relating to certain matters, which forms part
of the *jus honorarium*. The answers of those learned in the 8
law are the opinions and views of persons authorised to

- determine and expound the law ; for it was of old provided that certain persons should publicly interpret the laws, who were called jurisconsults, and whom the Emperor privileged to give formal answers. If they were unanimous the judge was forbidden by imperial constitution to depart from their
 9 opinion, so great was its authority. The unwritten law is that which usage has approved : for ancient customs, when approved by consent of those who follow them, are like
 10 statute. And this division of the civil law into two kinds seems not inappropriate, for it appears to have originated in the institutions of two states, namely Athens and Lacedaemon ; it having been usual in the latter to commit to memory what was observed as law, while the Athenians observed only what they had expressed in written statutes.
- 11 But the laws of nature, which are observed by all nations alike, are established, as it were, by divine providence, and remain ever fixed and immutable : but the municipal laws of each individual state are subject to frequent change, either by the tacit consent of the people, or by the subsequent enactment of another statute.
- 12 The whole of the law which we observe relates either to persons, or to things, or to actions. And first let us speak of persons : for it is useless to know the law without knowing the persons for whose sake it was established.

TITLE III.

OF THE LAW OF PERSONS.

- In the law of persons, then, the first division is into free
 1 men and slaves. Freedom, from which men are called free, is a man's natural power of doing what he pleases, so far as
 2 he is not prevented by force or law : slavery is an institution of the law of nations, against nature subjecting one man to
 3 the dominion of another. The name 'slave' is derived from the practice of generals to order the preservation and sale of captives, instead of killing them ; hence they are also called
mancipia, because they are taken from the enemy by the
 4 strong hand. Slaves are either born so, their mothers being slaves themselves ; or they become so, and this either by the